Brazoria County District Court

Cause No. 2025-CV-0040

John Buckley, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of John Buckley

Date:	September 14, 2025
Location:	Offices of Morris & Miller LLP
Examining attorney:	Stephanie Williams, Ashford & Lyle LLP
Defending attorney:	Bobby Berg, Morris & Miller LLP

Q: Please state your full name for the record.

A: I'd rather not give my full name on a document like this. You can call me the plaintiff.

Q: Understood. Where were you living at the time of the collision?

A: In the Katy area, just outside Houston, Texas.

Q: Walk me through what happened in the parking lot.

A: I had just pulled into a space at the shopping center near the main road. I was backing out slowly, looking over my right shoulder, and I felt my car get hit from the rear passenger side. The other driver had come down the lane without slowing much.

Q: How fast do you think the other vehicle was moving?

A: It wasn't highway speed, obviously. Maybe ten or fifteen miles an hour. But it was enough to jolt me forward and then back into the seat.

Q: Did you feel any pain immediately after the impact?

A: Not right away. I got out, checked the other driver, and we exchanged information. About an hour later my lower back started to tighten up, and by evening it was hard to get out of a chair.

Q: Did you seek medical care?

A: Yes. I went to an urgent care clinic the next morning. They took x-rays, ruled out any fracture, and diagnosed a lumbar strain. They gave me muscle relaxants and told me to rest and avoid heavy lifting.

Q: Have you continued treatment since then?

A: I've been going to physical therapy aobut twice a week. My primary care doctor also checked on me. The therapist has me doing stretches and some core work at home.

Q: How has the injury affected your daily life?

A: It's made ordinary things harder. I used to coach my nephew's soccer team on weekends, and I've had to step back from that. Sitting through a long drive is uncomfortable, and I've had trouble sleeping on my back. Lifting groceries, especially, is a problem. I've had to ask my partner to help with the heavier loads.

Q: Have you missed any work?

A: I work in an office, so I've been able to keep working, but I took a few partial days early on because sitting for long stretches made the pain worse. I've been using a lumbar cushion at my desk.

Q: Before this collision, had you ever injured your back?

A: Not seriously. I had some stiffness years ago from gardening, but nothing that required a doctor or time off.

Q: Do you feel the pain is improving?

A: Somewhat. Some days are better than others. The therapist says I'm making progress, but I still have flare-ups, especially after I've been driving or standing for a while.